

CNR No.HRGR01-007022-2019	CIS No. COMA-05-2019
SFIO Vs. Adarsh Builders and others.	

Present : Shri Deepak Gupta, counsel for the applicant-accused
Raj Kumar Modi.
Shri Anurag Hooda, PP for the State.

File taken up today on the application moved on behalf of the applicant-accused Raj Kumar Modi for furnishing bail bond. Along with application, copy of order dated 16.08.2021 passed by the Hon'ble apex Court in SLP(Crl.) No. 618 of 2020 is also attached.

Vide order dated 16.08.2021 passed by the Hon'ble apex Court in SLP(Crl.) No. 618 of 2020, Hon'ble apex Court has granted interim bail to the applicant-accused Raj Kumar Modi while making following observations:

“We have perused the order passed by this Court dated 17.12.2020 in SLP(Crl.) No.6456 of 2020 granting interim bail to the principal accused (Vivek Harivyasi).

In our opinion, therefore, even the present petitioner-Raj Kumar Modi deserves to be released on interim bail to the satisfaction of the concerned Court in connection with Criminal Complaint No.5 of 2019 dated 18.05.2019 bearing Case File No. SFIO/INV/AOI/2018-19-AGC&L/842-966 pending before the Court of learned Sessions Judge-cum-Special Judge (under Companies Act, 2013), Gurugram, Haryana on such terms and conditions as may be imposed by the concerned Court. Ordered accordingly.”

Hon'ble apex Court while giving this interim relief of bail, has referred to its earlier order dated 17.12.2020 passed in SLP (Crl.) No. 6456 of 2020, the observations made therein by Hon'ble apex Court are as under:

*“Delay condoned.
Issue notice restricted to the question of propriety of the order cancelling the bail.
In the meantime, the petitioner is directed to be released on interim bail subject to the satisfaction of the trial court.”*

The above contents of order of Hon'ble apex Court indicate that Hon'ble apex Court has granted interim bail to accused Raj Kumar Modi without specifying any time therein. It means, he is expected to be on interim bail till any further order is received from Hon'ble apex Court in this regard. Hence, in the given circumstances, applicant-accused Raj

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Kumar Modi is admitted to interim bail on his furnishing personal bond in the sum of ₹1,00,000/- with one surety in the like amount to the satisfaction of this Court and subject to the following conditions in its letter and spirit;

1. The applicant/accused will not go abroad except prior permission of the Court and will provide his contact number by the next date of hearing to the SFIO to enable the latter to ensure that the applicant-accused do not leave the country without permission of the Court;
2. The applicant-accused will not do any business of the kind for which he has been facing trial before this Court during this period of interim bail;
3. The applicant-accused will surrender his passport, if any, with jail authorities against proper receipt before his release from custody on interim bail, to get it back on the date of surrender;
4. The applicant/accused will not tamper with any evidence; and
5. The applicant/accused will share his location if so desired by the SFIO during this period.

Requisite bail bond and surety bond furnished. Surety bond is accepted and attested. Personal bond of applicant-accused Raj Kumar Modi is accepted and to be attested at jail gate. Release order of accused Raj Kumar Modi be issued to the jail concerned forthwith with the directions to release him on interim bail in this case, if not required in any other case.

Surety Rekha Modi, who is wife of accused Raj Kumar Modi stood surety for accused Raj Kumar Modi for a sum of ₹ 1,00,000/- against her two FDRs bearing A/c No.663013007396 and No.663013007399, both amounting to ₹50,000/- each, issued by ICICI Bank, branch Delhi Janpath. Both these two FDRs be retained on the file till further orders and an intimation be sent to the bank concerned to the effect that Rekha Modi has stood surety of accused Raj Kumar Modi for

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a sum of ₹1,00,000/- against these two FDRs. These FDRs may not be released to Rekha Modi, till further orders of this Court and both in original are retained by this Court on the file of the present case. A copy of this order be sent to the bank concerned forthwith for information and necessary action.

A copy of this order be also sent to the Superintendent, District Prison, Gurugram, for necessary compliance.

Now, to come up on 08.09.2021, the date already fixed, for presence of the accused.

Date of order : 17.08.2021.

Rakesh SG-I.

(Phalit Sharma)
Additional Sessions Judge,
Gurugram. [UID:HR0105].